SOLICITOR JENGWA
versus
THE STATE

HIGH COURT OF ZIMBABWE
MUCHAWA J
HARARE; 16 and 20 October 2025

Application for bail pending trial on changed circumstances

Applicant in person
B Murevanhema, for the State

MUCHAWA J: On the 20th of October 2025, I dismissed an application for bail pending trial based on changed circumstances. On 30 March 2026, the applicant lodged an appeal with the Supreme Court. The following case management order was issued:

> "1. The appeal is postponed to 30 April 2026 @ 11 AM.
>
> 2. The Registrar of the Supreme Court shall obtain the judgment of the court *a quo* on or before 27 April 2026."

As per the request of the Supreme Court, I provide the reasons for my order herein.

The background to this matter is that the applicant was arrested on 25 May 2024 and arraigned before the Bindura Magistrate Court relating to 6 counts of contravening the Electricity Act [*Chapter 13:19*].

On 19 June 2024 he was further charged with the offence of murder as defined in s 47 of the Criminal Law (Codification and Reform) Act [*Chapter 9:23*].

The allegations giving rise to the charge were that the applicant and his co-accused Gift Makuya together with four other accomplices hatched a plan to steal from the deceased who was a money changer and a neighbour to second accused. On 4 January 2024, the accused persons waylaid the deceased and blocked his way using stones and hid in a maize field nearby. When

the deceased came driving his motor vehicle, a Honda Fit registration number AFH 6409 he tried to manipulate his way through the blockage. At that point the accused persons emerged from the maize field. They fired towards the deceased and hit him on the forehead and he fell down. They took one of the heavy stones and placed it on the deceased's body and drove off in the deceased is motor vehicle. In the vehicle there were 30 satchels and 60 pairs of school shoes which they shared amongst themselves. They then drove the vehicle to Chitungwiza and burnt it down.

Upon their arrest, the two accused persons implicated their four accomplices who are still at large. On 19 June 2024 the applicant led to the recovery of 1 maroon Prasdos satchel from his house in Kuwadzana 2, Harare. The satchel was positively identified by the deceased's wife as matching those stolen from the deceased's motor vehicle.

On 20 June 2024, the two accused persons made indications on how they committed the offence. The initial bail application pending trial was dismissed on 10 July 2025. The reasons for dismissal were that the applicant is a flight risk as he is facing a serious offence committed in aggravating circumstances, is linked to the offence as he was found in possession of one of the stolen satchels and had made indications of how they committed the offence. Upon conviction, which is highly likely, the applicant will get a lengthy custodial sentence, and this will induce abscondment.

On 16 October 2025, the applicant's application for bail on changed circumstances was heard and I dismissed it.

Bail on changed circumstances is provided for in terms of s 116(c)(ii) of the Criminal Procedure and Evidence Act [*Chapter 9:07*]. It provides as follows.

> "116 Power to admit to bail…a person may…be admitted to bail…
> (a) …
> (b) …
> (c) If he or she is a person whose case is adjourned in terms of s 55(1) of Magistrates Court Act [*Chapter 7:10*] or in respect of whom an order has been made in terms of s 351(4), by a judge or by any magistrate within whose area of jurisdiction he or she is in custody:
> Provided that-
> (i)…
> (ii) where an application in terms of s 117A is determined by a judge or magistrate, a further application in terms of s 117A May only be made, whether to the judge or magistrate who had determined the previous or magistrate, if such application is based on facts which were not placed before the judge or magistrate who determined the previous application and which have arisen or been discovered after that determined."

In the case of *Judah Chikove* v *The State* HH 106-22, Honorable MUTEVEDZI J interpreted the meaning of the above provision. He posited as follows:

"The use by the legislature of the conjuctive "and" means both requirements in the two segments of s 116(c)(ii) must be fulfilled. First, the applicant must illustrate to the court that the facts were not made available to the judge or magistrate who determined and refused the previous application. Second, he must demonstrate that the facts arose or were discovered after the previous determination was made."

The applicant's submissions

The changed circumstances submitted by the applicant were that he had since been acquitted in all the 6 counts of contravening the Electricity Act.

Furthermore, his co-accused Gift Makaya was granted bail pending trial in the same case under case number HCHCR 4220/25 on the basis that the trial date had not yet been set for the third term. Similarly, the applicant submitted that the postponement of a trial date is a change in circumstances.

The rest of the submissions were not on changed circumstances but on the law.

The State submissions

It was submitted by the State that the earlier reasons for denial of bail had not changed. The granting of bail to his co-accused was said not to be a changed circumstance as each case is dealt with on its merits.

Lapse of time on its own was said not to be a factor which sways the court as it is not considerable time which had lapsed and the court dealing with the case can remedy the situation if there was any significant delay.

Court conclusions

After an analysis of the parties' submissions, I concluded that there were no changed circumstances in this case warranting vacating the earlier dismissal of the application for bail pending trial.

The fact that his co-accused had been granted bail was found not to be sufficient as each case is decided on its own merits.

Furthermore, regarding the issue of lapse of time, I found that it should be brought before the court seized with the matter in the lower court.

These are my reasons for the order granted dismissing the application for bail pending trial on changed circumstances.

MUCHAWA J:……..

National Prosecuting Authority, State Counsel